

The board in T.1731/12 endorsed T.775/95 and continued its approach, holding that a device defined by a feature that could be arrived at only by a surgical or therapeutic step was excluded from patentability under Art. 53(c) EPC. It agreed with the thinking that a product defined by a surgical step could not exist without it, and thus that the surgical step was part of the claimed product. Moreover, the exclusion of such a product from patentability was not contrary to the second clause of Art. 53(c) EPC, which provided that products for use in therapeutic or surgical methods were patentable. Otherwise medical and veterinary practitioners' freedom would be limited, as also discussed for example in G.1/07. The board saw a fundamental difference between the actions of "using" and "making" a product. Using patented subject-matter was generally allowed once that subject-matter had been duly purchased. To be allowed to make a patented product, by contrast, medical staff would need to purchase a licence for the process of making it; where that process involved a surgical or therapeutic method step, that would interfere precisely with the freedom of medical staff that the exclusion from patentability under Art. 53(c) EPC intended to protect.

4.4.5 Avoiding the exclusion of methods of treatment by surgery from patent protection under Article 53(c) EPC

a) Claim cannot be left to encompass surgical step

A claim encompassing an embodiment which is excluded from patentability under Art. 53(c) EPC cannot be left unamended (G.1/07, OJ 2011, 134; as previously held in G.1/98, OJ 2000, 111).

In G.1/07 the board also found the following: whether or not a step being or encompassing a surgical step excluded from patentability can be omitted either by using positive wording for such omission like "pre-delivered" or by simply leaving it out from the claim depends, under Art. 84 EPC, on whether the claimed invention is fully and completely defined by the features of the claim without that step. That requires an assessment of the individual case under consideration.

b) Disclaimer

The Enlarged Board in G.1/07 went on to say that the exclusion from patentability under Art. 53(c) EPC can be avoided by disclaiming an embodiment, it being understood that in order to be patentable the claim including the disclaimer must fulfil all the requirements of the EPC and, where applicable, the requirements for a disclaimer to be allowable as defined in decisions G.1/03 (OJ 2004, 413) and G.2/03 (OJ 2004, 448) (see also G.1/16). Whether or not the wording of a claim can be amended so as to omit the surgical step without offending against the EPC must be assessed on the basis of the overall circumstances of the individual case under consideration (see T.923/08, in this chapter I.B.4.4.4 d)).

c) Methods only concerning the operation of a device

It is the established case law of the boards of appeal that a method which is only concerned with the operating of a device without any functional link between the claimed method and the effects produced by the device on the body does not qualify at all as a method for treatment within the meaning of Art. 52(4) EPC 1973 (Art. 53(c) EPC) (T 245/87, OJ 1989, 171, T 789/96, OJ 2002, 364). If, on the contrary, there is such a functional link the method is excluded from patentability (T 82/93, OJ 1996, 274, T 1680/08, T 141/15). In T 1075/06 the board explained that this principle, initially developed for devices for use in a therapeutic treatment (T 245/87, OJ 1989, 171), had been endorsed by the EBA for treatments by therapy as well as surgery (G 1/07).

According to the Enlarged Board in G 1/07, whether or not a claimed method only concerns the operation of a device without any functional link to the effects of the device on the body requires an evaluation of the overall technical circumstances of the case and is therefore a matter to be determined in the individual cases under consideration.

In T 1680/08 a non-invasive method and apparatus for optimising the respiration for atelectatic lungs was held to be a method for treatment by therapy, because there was a functional and indissociable link between the claimed method and any artificial ventilation practised on a connected patient.

In T 44/12 the board stated that, whether or not a method has to be considered a method for treatment of the human body by therapy is determined by the existence of a functional link or a direct influence of the method claimed in itself on a given therapy, such that the medical doctor's freedom of choice and of practice in this respect is hindered. In the present case the board considered that the subject-matter only concerned the operation of a device, without any functional link to the effects of the device on the body.

In T 699/12 the invention pertained to a method of verifying a radiotherapy treatment device. The board held that the claimed method only concerned the technical operation of a device without any functional link to the effects of the device on the body. While the intention of the claimed method was to verify the actual dose that the patient should receive, what was measured was the output dose of the radiation source and it was checked whether the radiation source worked as expected. In the claimed method there was no step that would influence the actual treatment of the patient. The medical practitioner was free to choose the next steps of treatment of a patient.

In T 944/15, the invention, as described, related to a data processing method for controlling a process of monitoring the position of at least a part of a patient's body during a radiation treatment by means of a computer. The board rejected the claim as being a medical method, even though the claim was restricted to a method implemented on a computer. It held that it was not the claimed scope, but the corresponding teaching of the invention which was decisive for establishing what the invention is, and, for the purpose of Art. 53(c) EPC, whether or not a claimed invention only concerned the operation of a device without any functional link to the effects of the device on the body (G 1/07). In conclusion and paraphrasing G 1/07, the board held that the claimed method was not

merely directed to the control of the device, because the teaching of the invention was not complete without the steps of initiating the monitoring and using the result; their necessary consideration as part of the teaching of the invention meant that the claim defined a method of treatment excluded under Art. 53(c) EPC.

4.4.6 Data obtained during surgery

On the particular facts of the case before it, the Enlarged Board held in G 1/07 that a claimed imaging method is not to be considered as being a "treatment of the human or animal body by surgery" within the meaning of Art. 53(c) EPC merely because during a surgical intervention the data obtained by the use of the method immediately allow a surgeon to decide on the course of action to be taken during a surgical intervention.

4.5. Therapeutic methods

Therapeutic methods are subject to a rule, similar to that applicable to surgical methods, that they cannot be patented if they include at least one feature defining a physical activity or action that constitutes a method step for treatment of the human or animal body by therapy (G 1/04, OJ 2006, 334; G 1/07, OJ 2011, 134).

4.5.1 The term "therapy"

a) Definition of the term

The first definition of the term "therapy" was given in T 144/83 (OJ 1986, 301). According to this decision, therapy relates to the treatment of a disease in general or to a curative treatment in the narrow sense as well as the alleviation of the symptoms of pain and suffering.

In T 81/84 (OJ 1988, 207) the board found that the concept of therapy should not be construed narrowly. It would be impossible and undesirable to distinguish between basic and symptomatic therapy, i.e. healing or cure and mere relief. The board concluded that irrespective of the origin of pain, discomfort or incapacity, its relief, by the administration of an appropriate agent, was to be construed as therapy or therapeutic use within the meaning of Art. 52(4) EPC 1973.

In T 24/91 (OJ 1995, 512) the board observed that the term "therapy" was not restricted to curing a disease and removing its causes. Rather, this term covered any treatment which was designed to cure, alleviate, remove or lessen the symptoms of, or prevent or reduce the possibility of contracting any disorder or malfunction of the human or animal body. The board found that the claimed process removed, by treatment of the patient's eye, the symptoms of myopia, hyperopia and astigmatism and was therefore a therapeutic treatment.

In T 2420/13 the board stated that a "therapeutic treatment" required some intervention on the body or body part to be treated which caused a therapeutic effect.

In T.1075/09 the patent proprietor had argued that the feature had been part of the definition of the patient group and could not be considered to be a claimed therapeutic method. The board held that claim 1 was worded in such a way that it taught the direct administration of FSH to the patient for inducing folliculogenesis because the feature "and wherein folliculogenesis is induced by the administration of FSH" was not covered by the Swiss-type format. Therefore this feature constituted a therapeutical method of its own involving a direct physical intervention on the human body.

In T.944/15, the invention, as described, related to a data processing method for controlling a process of monitoring the position of at least a part of a patient's body during a radiation treatment by means of a computer. The appellant argued that the invention was a data processing method confined to the computer, i.e. a computer-implemented method. In the board's view, the second leg of the provision in Art. 53(c) EPC refers essentially to products and held that a computer program, as defined in the claimed invention was not such a product. In providing protection for a computer program which is designed to implement a method of treatment, de facto protection is provided for the method of treatment, because running the program is using the method. As the method is excluded, so the computer program should also be excluded: even if indirectly conferred, a protection for a method of treatment goes against the ratio legis of Art. 53(c) EPC (G.1/07, point 3 of the Reasons).

b) Prophylactic treatments

It is established case law that a prophylactic treatment, aimed at maintaining health by preventing ill effects that would otherwise arise, amounts to a method for treatment by therapy as referred to in Art. 53(c) EPC, and that therapy is not limited to treatments which restore health by curing diseases which have already arisen (see e.g., G.5/83, OJ 1985, 64). Both prophylactic and curative methods of treating disease are covered by the word therapy, since both are directed to the maintenance or restoration of health (T.19/86, OJ 1989, 24; T.290/86, OJ 1992, 414; T.438/91, T.820/92, OJ 1995, 113).

In T.2071/15 the invention concerned a dental care product for the purpose of restoring pH in the mouth, from a lower pH to neutral pH. This was held to be based on the therapeutic mechanism of action of inhibition of growth of oral bacteria, and therefore excluded.

c) Distinction from performance improvement

The board in T.774/89 distinguished "therapy" from "performance improvement", finding that the purpose of therapy was invariably to restore the organism from a pathological to its original condition, or to prevent pathology in the first place, whereas a non-therapeutic improvement of performance took as its starting point a normal state (to be defined) (see T.385/09).

d) Distinction from cosmetic methods

Therapeutic methods must also be distinguished from cosmetic methods. In G 1/07 (OJ 2011, 134) the Enlarged Board of Appeal pointed out that it was the express wording of Art. 53(c) EPC that only therapeutic methods were excluded from patentability (and thus cosmetic methods were not) and the exclusion could not be extended to treatments which were not therapeutic in character (see also T 1172/03 making reference to T 144/83, OJ 1986, 301).

e) Examples from case law

In T 469/94 the board observed that the treatment for reducing the perception of fatigue due to an increase in acetylcholine level in the brain and tissue was not comparable with the relief of pain, discomfort and incapacity (see above T 81/84, OJ 1988, 207).

In T 74/93 (OJ 1995, 712) the claimed invention related to alicyclic compounds and their contraceptive use. The board took the view that a method of contraception was not excluded per se from patentability under the aspects as stipulated in Art. 57 as well as in Art. 52(4), first sentence, EPC 1973 (now Art. 53(c) EPC). Pregnancy was not an illness and therefore its prevention was not in general therapy according to Art. 53(c) EPC (see also T 820/92, OJ 1995, 113; T 1635/09, OJ 2011, 542). Nevertheless, the method could not be patented as a method of contraception to be applied in the private and personal sphere of a human being could not be deemed susceptible of industrial application (see chapter I.E.1.2.1).

In T 1075/06 the board held that a method claim comprising the step of returning processed blood, depleted of some of its components and charged with an anticoagulant, to a donor is a method for treatment of the human body by therapy which is excluded from patentability under Art. 53(c) EPC.

According to the contested patent in case T 611/09, a lock solution was used for infusion into the lumen of an in-dwelling intravascular catheter, i.e. a catheter which was typically inserted into a vein or artery and therefore in intimate contact with the human or animal body. According to the board, this did not necessarily mean that the lock solution was also directly in contact with or even active within the human or animal body. The board concluded that the antibacterial activity only took place in the lumen, which was part of the catheter that was located outside of the human or animal body, which meant that it was not therapeutic.

In T 1819/13 the use of an antibiotic for the manufacture of a medicament for use in treating or preventing a bacterial infection in an animal by injection of the medicament subcutaneously at the junction of a pinna with the cranium of the animal was claimed. The site of injection was held to be an integral technical element of the administration of the medicament and thus of the therapeutic application. However, this feature of a specific site of injection did not mean that the claim fell within the scope of Art. 53(c) EPC (see also T 1554/11).